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Finish the settlements, wind up the Waitangi Tribunal

ACT will complete the remaining historical Treaty claims, end the Waitangi Tribunal's contemporary jurisdiction, and wind it up once its historical work is finished.

The Waitangi Tribunal has made an important contribution to New Zealand. It was established in 1975 to investigate contemporary claims that the Crown had breached the Treaty. In 1985, Parliament extended its jurisdiction back to 1840, allowing it to investigate historical grievances and helping create the pathway for the Treaty settlement process.

ACT supports completing full and final historical Treaty settlements as a pragmatic way to resolve past injustices, including where the Crown confiscated land or otherwise breached property rights. That work should be finished properly.

But the Tribunal that exists today is very different from the institution established in 1975.

Its contemporary inquiries have become increasingly ideological and expansive. Through urgent and kaupapa inquiries, it now routinely passes judgment on ordinary questions of government policy, proposes alternative policy settings, and seeks to influence decisions properly belonging to elected Governments and Parliament.

The people who created the Tribunal would scarcely recognise the institution it has become. As New Zealand approaches 2040, two hundred years after the signing of the Treaty, it is time to complete the historical settlement process and move forward.

If the Government breaches someone's rights today, New Zealanders should have strong legal protections and access to the courts regardless of their ancestry. ACT believes those protections should be strengthened for everyone, not maintained through a permanent separate system for one group.

01 Complete the historical settlement process

The Waitangi Tribunal's historical jurisdiction has played an important role in identifying past Crown wrongdoing and establishing the basis for settlements.

The Crown confiscated land, failed to recognise legitimate property rights, and committed other historical injustices for which those affected often had no realistic avenue of redress. Those claims should be heard and resolved.

But a settlement process must eventually settle something. Parliament has already recognised the need for an end point. In 2008, it closed the door to new historical claims by setting 1 September 2008 as the statutory deadline for lodging them. The Tribunal itself now has a goal of completing its Inquiry into Remaining Historical Claims by 2030. Every eligible historical claim already before the Tribunal should be able to run its course.

ACT will limit the Tribunal's jurisdiction to historical claims lodged by the existing 1 September 2008 statutory deadline and end its power to inquire into contemporary Government policy and conduct. Existing historical claims will still be heard and completed.

02 Stop the activism

The Waitangi Tribunal was originally created to hear contemporary claims. But its ability to perform that role credibly depends on public confidence that it approaches those questions with restraint, objectivity, and respect for the proper role of democratic institutions. ACT does not believe the modern Tribunal meets that test.

Its urgent and kaupapa inquiries increasingly resemble alternative policy processes. They range across questions such as citizenship, public-sector pay, electoral law, government communications, health, child welfare, resource management, and the design of legislation itself.

Kaupapa inquiries in particular attempt to review whole areas of public policy and recommend how governments should govern them. That is the job of Ministers and Parliament.

The Tribunal should not operate as a parallel policy institution, producing its own prescriptions for how elected Governments should exercise their mandate.

After fifty years of institutional evolution, its contemporary jurisdiction no longer continues to serve New Zealand well.

ACT will end the Waitangi Tribunal's jurisdiction over contemporary Crown policy and conduct, leaving it to focus solely on completing the remaining historical claims.

03 Protect everyone's rights through the law

Ending contemporary Tribunal claims does not mean giving governments a free hand to violate people's rights.

If the Crown unlawfully takes someone's property, interferes with their rights, or otherwise acts outside the law today, that person should be able to challenge the Government through the courts. That protection should apply equally to every New Zealander.

ACT has already announced that we will strengthen property rights for everyone by adding them to the New Zealand Bill of Rights Act. That would protect the peaceful enjoyment of property and provide that people should not be deprived of it except in the public interest, on just terms, and in accordance with law.

Governments would face greater scrutiny when they interfere with people's homes, farms, businesses, land, or other property. Those are protections every New Zealander should have.

ACT does not believe one group should require a separate tribunal to protect interests that should instead be protected for everyone through the ordinary law.

The answer to weak property rights is stronger property rights, not permanent parallel institutions. In fact, the Tribunal has opposed measures intended to strengthen protections against arbitrary government action, including the Regulatory Standards Act.

ACT will strengthen protection of property rights for all New Zealanders and ensure actual breaches of property rights by the Crown are dealt with through the ordinary legal system.

04 Wind up the Tribunal when the job is done

The Waitangi Tribunal is currently established as a permanent commission of inquiry. ACT does not believe it should be permanent.

Its historical work is finite and nearing completion. ACT will not impose an arbitrary calendar deadline that risks rushing legitimate historical claims simply to meet a date. Instead, the Tribunal will remain in existence only for as long as it takes to complete the historical work already before it.

Its funding will reduce with its remaining workload so its resources remain focused on completing that task. Once the final historical claims have been completed, the reason for retaining the Tribunal will have come to an end.

ACT will amend the Treaty of Waitangi Act so the Tribunal is automatically disestablished once all eligible historical claims have been completed.

Settle the past, strengthen the future

The Waitangi Tribunal has been part of New Zealand's constitutional landscape for more than fifty years and has made an important contribution, particularly in helping address historical grievances.

But institutions should not exist simply because they have existed for a long time.

As we approach 2040, the focus should be on completing the remaining historical settlements, protecting the rights of every New Zealander through the same law and courts, and moving forward under one law for all and one future together.

ACT will finish the historical settlement process, strengthen property rights for all New Zealanders, and wind up the Waitangi Tribunal when its historical work is complete.